

Smt. Dipika Ghosh (Paul) vs Sri Subrata Paul on 22 April, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA
AGARTALA

Mat. App. 11 of 2024
connected with
Mat. App.12 of 2024

Smt. Dipika Ghosh (Paul)

.....Appellant(s)

Versus

Sri Subrata Paul

.....Respondent(s)

For the Appellant(s) : Mr. Raju Datta, Advocate.

Mr. Kundan Pandey, Advocate.

For the Respondent(s) : Mr. Hare Krishna Bhowmik, Adv.

Mr. Rakhu Das, Advocate.

Date of hearing & delivery
of judgment and order : 22.04.2025

Whether fit for reporting : Yes/No.

HON'BLE MR. JUSTICE T. AMARNATH GOUD
HON'BLE MR. JUSTICE BISWAJIT PALIT

Judgment & Order (Oral)

[T. Amarnath Goud. J.]

Heard Mr. Raju Datta, learned counsel appearing for the appellant-wife and Mr. H.K. Bhowmik, learned counsel appearing for the respondent-husband along with their respective clients present in-person.

[2] The present appeal being Mat. App. 11 of 2024 is filed under Section 28 of the Hindu Marriage Act, 1955 read with Section 19(3) of Family Courts Act, 1984, against the Judgment and Decree dated 17.02.2024 passed by the learned Judge, Family Court, Belonia, South Tripura District, Tripura in case No. TS (RCR) 5 of 2021 whereby the application of the appellant petitioner under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights was dismissed. [3] On the other hand, the present connected appeal being Mat. App.12 of 2024 is filed under Section 28 of the Hindu Marriage Act, 1955 read with Section 19(3) of Family Courts Act, 1984 against the Judgment and Decree dated 17.02.2024 passed by the learned Judge, Family Court, Belonia, South Tripura District, Tripura in case No. TS (Divorce) 43 of 2021 whereby the marital tie between the respondent husband and the appellant wife was dissolved by a decree of divorce under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955.

[4] Since, both these appeals are filed by the appellant- wife against the respondent-husband challenging the common judgment and decree dated 17.02.2024 passed by the learned Court below and cause of actions arising out of both the appeals are also similar, thus, these present appeals are taken together for disposal in a common order.

[5] The learned Court below upon hearing the parties and on perusal of all the material evidence on record, has decided the case of the appellant-wife and the respondent-husband by its common impugned judgment and order dated 17.02.2024 passed in T.S.(Div.) 43 of 2021 and in T.S. (RCR) 05 of 2021. The relevant contents from the said impugned order dated 17.02.2024 passed by the learned Court below is extracted hereunder:

"....[45]

ORDER in TS(Div) 43 of 2021

[i] In the result, it is hereby ordered that the petition filed

U/S-13(1)(ia) &(ib) of the Hindu Marriage Act, 1955 by the husband-petitioner for dissolution of marriage between himself and the wife-respondent is allowed. Consequently, the suit is hereby decreed with declaration that the marriage and marital tie between the petitioner Sri Subrata Paul and respondent Smt. Dipika Ghosh (Paul) stands dissolved henceforth. Parties are to bear their own costs.

[ii] It is also ordered that the husband shall pay further Rs. 3000.00(Three Thousand) per month to the wife, in addition to Rs. 5000.00 (Five Thousand)) which he has to pay every month as per the order passed by the Ld JM, First Class, Belonia, South Tripura, in Maintenance case No.42 of 2015,

as maintenance and alimony to the wife by the 10th day of every month of English Calendar, till life or remarriage of the wife, whichever is earlier. In the alternative, the husband may choose to pay Rs.10,00,000.00(Ten Lac) only to the wife as permanent alimony in which case the wife shall not be entitled to get any monthly maintenance including maintenance as per the order dated 12.06.2017 passed by the Ld. J.M. First Class, Belonia, South Tripura in Maintenance case No.42 of 2015. [iii] Let a decree be prepared accordingly and place it for signature within fifteen days from today.

[iv] The case is thus disposed of on contest.

[v] Make necessary entry into the Trial Register."

[46]

ORDER in TS(RCR) 05 of 2021

[i]

In the result, it is hereby ordered that the petition file

U/S-9 of the Hindu Marriage Act, 1955 by the petitioner for restitution of his conjugal rights with the respondent is not allowed. Consequently, the suit is hereby dismissed. Parties are to bear their own costs.

[ii] Let a decree be prepared accordingly and place it for signature within fifteen days from today.

[iii] The case thus stands disposed of on contest....." [6] Mr. Raju Datta, learned counsel appearing for the appellant-wife submits that the learned trial Court failed to consider that respondent husband tortured the appellant wife mentally and physically and compelled her to live separately so that, the respondent could file a divorce case against her. It is further contended on behalf of the appellant wife that the learned trial Court did not consider that the appellant wife was eager to cohabit with the respondent husband and she had filed a petition for restitution of conjugal rights being registered as TS (RCR) 5 of 2021. Mr. Datta, learned counsel further submits that the acquittal of the respondent husband and her family members from the criminal case lodged by the appellant did not entitle the respondent husband to seek divorce because it was not held by the criminal court that the criminal case lodged by the appellant wife was false.

[7] On the other hand, Mr. H.K. Bhowmik, learned counsel for the respondent husband submits that the marriage between the respondent husband and the appellant wife has already been broken down irreparably as the respondent wilfully withdrew herself from the society of the respondent and is staying separately. He, further submits that that the husband is a TSR personnel presently drawing about Rs.37,000/- p.m. as his salary. It is contended that the wife lodged a false case against the husband and his parents for which, his father suffered judicial custody and as a result, they had to face stigma and lost their social status in the society. Learned counsel, therefore, urges this Court to dismiss the instant appeals filed by the appellant. [8] Heard learned counsel appearing for the parties. Perused the record.

[9] It is seen from record that a complaint was filed by the wife against the husband and his family members. On such complaint, a case U/S 498A/376/109 of IPC was registered and on completion of investigation charge sheet was filed against the husband and his parents. After commitment, charge

was framed against the husband U/S 498A of IPC and against her parents U/S 498A IPC read with Section 109 of IPC and against the father of the husband U/S 376(1) IPC. Subsequently, the accused persons were acquitted and entitled to benefit of doubt. [10] Hence, in view of the said serious allegations brought against the husband and his family members more particularly, against the father of the respondent husband, this Court feels that at this stage, there is no scope of re-union of the parties and to construct the matrimonial tie between them would be a futile exercise. However, considering all the facts and circumstances of the case, this Court is of the opinion that ends of justice would be met if the respondent pays a sum of Rs.11,00,000/- as permanent alimony regarding the financial support that the wife appellant will receive after the divorce or separation. Accordingly, this Court awards permanent alimony of Rs.11,00,000/- (rupees eleven lakhs) to the appellant-wife which will be paid by the respondent-husband. The entire amount of Rs.11,00,000/- along with all other arrears of maintenance, if any, shall be paid by the respondent-husband on the first day of every month in four equal monthly instalments w.e.f. 01.5.2025 onwards to the appellant- wife. It is made clear that until the payment of permanent alimony is fully paid to the wife, the respondent husband shall continue to pay monthly maintenance to the wife as awarded by the learned Court below vide its Order dated 17.02.2024. Resultantly, the marriage between the parties is dissolved.

With the above observations and directions, the instant appeals are disposed of. The personal appearance of the parties is hereby dispensed with. As a sequel, miscellaneous application(s), pending if any, shall also stand closed.

B. PALIT, J
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T. AMARNATH GOUD, J

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